

MARK BAKER v. GOGRI CORPORATION et al.
Case No. CU25-06372

Motion for Preliminary Injunction

TENTATIVE RULING

Plaintiff MARK BAKER moves for a preliminary injunction against Defendant LIVEVIEW TECHNOLOGIES, INC. (“LVT”) ordering LVT to disable the blue LED lights on LVT’s security systems in place across Yolo, Sacramento, and Solano Counties.

Plaintiff’s motion for preliminary injunction is DENIED.

A trial court may grant a preliminary injunction upon a showing that (1) the party seeking the injunction is likely to prevail on the merits at trial, and (2) interim harm to that party if an injunction is denied is greater than interim harm the opposing party is likely to suffer if the injunction is issued. (*Integrated Dynamic Solutions Inc. v. VitaVet Labs, Inc.* (2016) 6 Cal.App.5th 1178, 1183.) A court has power to issue a preliminary injunction that mandates an affirmative act that changes the status quo, but should only do so in extreme cases where the right to the relief is clearly established. (*Ibid.*)

Plaintiff’s motion does not demonstrate that injunctive relief would be appropriate. Code of Civil Procedure section 527, subdivision (a) permits the issuance of a preliminary injunction at any time before judgment if a verified complaint or affidavits show that sufficient ground for injunctive relief exists. To obtain a preliminary injunction a plaintiff must present admissible evidence of the irreparable injury or interim harm he will suffer if an injunction is not issued. (*Iloh v. Regents of University of California* (2023) 87 Cal.App.5th 513, 522.) A preliminary injunction is improper where harm may be fully compensated by damages. (*Tahoe Keys Property Owners’ Assn. v. State Water Resources Control Board* (1994) 23 Cal.App.4th 1459, 1471.)

Plaintiff presents insufficient evidence of irreparable harm that requires immediate court intervention. Plaintiff states that LVT’s blue LED lights cause harm to persons with autism and/or photophobia but other than his own personal experience fails to present any qualified expert opinion to support his contention. As a layperson, these opinions are outside the scope of common knowledge and lack foundation. Presenting purported “evidence” in the form of summaries of other unauthenticated treatises or studies does not cure this defect and is inadmissible hearsay.

As to Plaintiff’s individual harm, he admits that the blue lights are no longer present at the GOLDEN HILLS location he frequents but contends that they continue to be present at other locations throughout Solano, Yolo and Sacramento counties. Plaintiff also does not demonstrate that his asserted harms are not fairly compensable with damages. He states that his harms include “agitation, fear, and panic,” which are all things the law routinely compensates via damages in emotional distress cases (among others). (Motion at ¶ 4;

see generally *Martinez v. Rite Aid Corp.* (2021) 63 Cal.App.5th 958 [award of damages for emotional distress].)

Overall, considering the low likelihood that Plaintiff will prevail at trial based on the absence of qualified, admissible evidence; the absence of immediate and ongoing harm to Plaintiff and the potential Plaintiff may be compensated by monetary damages in comparison to the potential harm to Defendant, the balance of harms favors LVT and weighs against issuance of a preliminary injunction.

Because the court finds that Plaintiff has failed to meet his burden to establish an entitlement to a preliminary injunction, the court does not reach the balance of the argument as to whether the relief requested can be nationwide or is now moot because the blue lights associated to the security system are no longer used at GOLDEN HILLS.

Based on the above, Plaintiff's motion for a preliminary injunction is DENIED.

TD BANK, N.A. v. ROYCE S. GOREE
Case No. CU25-08305

Plaintiff's Motion to Have Admissions Deemed Admitted and Request for Sanctions

TENTATIVE RULING:

The motion of TD BANK N.A. to deem matters admitted is DENIED WITHOUT PREJUDICE.

Plaintiff's notice of motion gives erroneous information regarding the time and date of hearing. Notably, the motion advises Defendant to check for a tentative ruling on "6-24-26." Further, the proof of service does not appear to have Defendant's correct mailing address as it fails to identify the proper suite number. Defendant's original answer did not have a suite number, but his amended answer does. This error is ascribed to Defendant and not to Plaintiff, but should be ruled out through meet and confer as a basis for the alleged failure of Defendant to respond before a future motion is filed.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645
Passcode: 675002